

Surya Trauma Centre And Hospital v. Purvanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 3 February 2021 · WRIT - C No. 584 of 2021 · **Writ disposed; petitioner relegated to Clause 6.5 on 33% deposit, with coercive action stayed pending that application.**

HEADNOTE

A writ challenging an electricity bill and disconnection notices on the ground that the bill was incorrect was not entertained because Clause 6.5 of the U.P. Electricity Supply Code, 2005 supplies a statutory remedy. The petition was disposed of directing that if the consumer approaches the appropriate authority and deposits 33% of the total dues within ten days, the authority shall decide the application by a reasoned speaking order in accordance with law after hearing, preferably within a month. Coercive action was stayed till that disposal, with automatic lapse of protection on default. A later order extended the time to comply by two weeks.

FACTUAL SUMMARY

Surya Trauma Centre and Hospital, a consumer of Purvanchal Vidyut Vitran Nigam Ltd. under Connection No. SRO5000010015, challenged in writ a bill dated 11 September 2020 and subsequent disconnection notices dated 2 December 2020 and 28 December 2020. The hospital contended that the bill was incorrect. After an adjournment as fresh, the Division Bench heard the petition on 3 February 2021. A later application sought more time to comply with the deposit condition attached to the disposal.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-dispute-alternate-remedy

HOLDING

A writ petition raising a dispute as to the correctness of an electricity bill and seeking quashing of that bill and disconnection notices will not be entertained when Clause 6.5 of the U.P. Electricity Supply Code, 2005 affords a statutory remedy. The consumer may approach the appropriate authority; on deposit of 33% of the total dues, that authority is to decide the application by a reasoned speaking order in accordance with law after hearing, and coercive action is stayed till that disposal, subject to automatic lapse of protection on default. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Court declined to entertain the writ because Clause 6.5 of the Supply Code was an available statutory remedy for a bill-correctness dispute. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The petitioner's challenge to the correctness of the bill was directed to the Clause 6.5 forum rather than decided on the writ. ¶ 1

6.5-representation-as-appropriate-remedy The writ was disposed of with a direction that if the petitioner approaches the appropriate authority and deposits 33% of dues, the application be decided by reasoned speaking order in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILL DATED 11.9.2020 FOR CONNECTION NO. SRO5000010015
Left to the Clause 6.5 authority to decide on representation, subject to 33% deposit. ¶ 1

NOT DECIDED — VALIDITY OF DISCONNECTION NOTICES DATED 02.12.2020 AND 28.12.2020
Not examined on merits; coercive action stayed only pending the Clause 6.5 application. ¶ 1

